BY ORDER OF THE SECRETARY OF THE AIR FORCE

DEPARTMENT OF THE AIR FORCE POLICY DIRECTIVE 32-90

20 APRIL 2021

Civil Engineering

REAL PROPERTY MANAGEMENT

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OPR: SAF/IEI

Certified by: SAF/IE (Mr. John W. Henderson)

Supersedes: AFPD32-90, 6 August 2007

Pages: 9

This Department of the Air Force Policy Directive (DAFPD) implements Department of Defense Directive (DoDD) 4165.06, *Real Property*, Department of Defense Instruction (DoDI) 4165.65, *Shelter for the Homeless Program*, DoDI 4165.70, *Real Property Management*, DoDI 4165.71, *Real Property Acquisition*, DoDI 4165.72, *Real Property Disposal*, DoDI 4165.14, *Real Property Inventory (RPI) and Forecasting*. This publication applies to all civilian employees and uniformed members of the Regular Air Force, United States Space Force, the Air Force Reserve and the National Guard. Refer recommended changes and questions regarding this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*; route AF Forms 847 from the field through the appropriate functional chain of command. Ensure all records created as a result of processes prescribed in this publication are maintained in accordance with Air Force Instruction (AFI) 33-332, *Records Management and Information Governance Program*, and disposed of in accordance with the Air Force Records Disposition Schedule located in the Air Force Records Information Management System.

SUMMARY OF CHANGES

This document has been substantially revised and must be completely reviewed. Changes include updating office symbols and expanding roles and responsibilities. The most notable changes to this policy directive are the amendment of the title from *Real Property Asset Management* to *Real Property Management* and the incorporation of the Space Force into the Department of the Air Force.

1. Policy. It is Department of the Air Force (DAF) Policy that:

1.1. DAF real property is planned, acquired, managed, and divested in a manner which ensures the overall sustainability and support of its missions. The DAF will also ensure the larger defense requirements of the Department of Defense (DoD), in the DAF's role as agent for property owned by the United States of America. Real property encompasses lands, buildings, structures, utility systems, improvements, and appurtenances (permanent attachments) thereto. The DAF will accurately manage its real property in accordance with Federal Real Property Council guidance. The DAF will efficiently and effectively sustain the real property asset inventory. The DAF will also ensure it manages its real property asset inventory as needed to sustain current mission capabilities and enable projected mission capabilities.

1.2. Existing DAF real property asset use is maximized prior to the acquisition of new real property. The DAF will use integrated planning, environmental, and mission beddown processes to assess current use and expected strategic requirements for all installations.

1.3. DAF real property is acquired in the United States, territorial areas administered by the United States, and the Commonwealth of Puerto Rico to meet its mission requirements with the exception of leases of administrative space in the National Capital Region. In foreign countries, the DAF must have prior approval of the foreign government or a clearance for particular missions in order to acquire real property. Real property acquisitions include fee title (fee ownership) or lesser non-fee real property interests such as easements, and leases. The choice of options is dependent upon mission needs and the installation's operating environment. Real property acquisition uses the most economical way to meet mission requirements (for leases in the National Capital Region, Washington DC see AFI 32-9010, *Management and Reporting of Air Force Space and Building Services in OSD Assigned Facilities and in the Washington DC Area* and DoDI 5305.05, *Space Management Procedures for the National Capital Region (NCR)*). The DAF will only acquire the minimal interest and size of real property necessary to ensure and conduct the mission operations for the expected life of the mission.

1.4. Before acquisition of new DAF real property, the DAF will consider the use of available real property from another military service or federal agency; the exchange of excess federal property for privately-owned land, facilities, or other real property; or the use of state or local land through donation or a lease agreement.

1.5. The intent of DAF real property asset management is to sustain DAF real property assets, through facility optimization, cost, and condition to accomplish DAF missions and objectives. The DAF will ensure that business processes promote effective management of real property assets to ensure real property program management is consistent with DoD and DAF Financial Improvement and Audit Readiness guidance in accordance with DoDI 4165.14, *Real Property Inventory and Forecasting*. The DAF will perpetually maintain an accurate audit ready inventory of DAF real property in accordance with Federal Real Property Council, DoD, and DAF instructions. The annual DAF Financial Statement will reflect real property used by the DAF. The DAF will record fiscal, physical, legal, environmental, and geospatial information on real property assets to which the DAF has a legal interest. Data from real property inventories and accountability will serve as the basis for current sustainment and future capital investments.

1.6. The DAF will encourage multiple uses, when consistent with DAF mission needs, in order to promote efficiency. Any multiple uses of real property should comply with established programs such as national defense requirements, environmental conservation and protection, public safety, Air Installation Compatible Use Zones, and explosive safety clear zones. Partnering with other military services, other government agencies, and public and private corporations is encouraged when possible to maximize mission capability. The DAF will issue outgrants (such as leases, licenses, permits, and easements) to DoD and non-DoD agencies when the proposed use is compatible with multiple use and environmental criteria. In issuing these outgrants, which allow these agencies use of DAF real property assets, the DAF will manage DAF real property assets in accordance with market based principles set forth in Executive Order 13327 "Federal Real Property Asset Management," DoDD 4165.06, DoDI 4165.70, DoDI 4165.71, DoDI 4165.72, DoDI 5030.53, *Reimbursement for General Services Administration (GSA) Space, Services and Facilities*; *and Department of Homeland Security (DHS), Washington Headquarters Services (WHS), and Pentagon Force Protection Agency (PFPA) Services*, and DoDI 5305.05.

1.7. The DAF will continually assess the DAF real property asset portfolio against ongoing and projected mission needs, in order to maximize efficiency of its operations. The DAF will use a systematic approach to determine if retaining DAF real property assets provides the best value to the DAF. Otherwise, the DAF shall leverage market-based principles in the disposition (e.g. disposal of old and costly facilities) of excess DAF real property assets, in order to reduce overall installation sustainment and custody set forth costs EO 13327, DoDD 4165.06, DoDI 4165.70, DoDI 4165.71, DoDI 4165.72, DoDI 5030.53, and DoDI 5305.05.

1.8. The DAF will comply with the Comprehensive Environmental Response Compensation Liability Act of 1980, Resource Conservation and Recovery Act of 1976, DoDM 4715.20, *Defense Environmental Restoration Program Manual*, and DoDI 4715.07 and conduct environmental restoration as needed at installations under DAF jurisdiction and control, and respect heritage assets. The DAF will use the Environmental Baseline Survey and the Environmental Impact Analysis process in its role in managing its real property assets in accordance with DAFPD 32-70, *Environmental Considerations in Air Force Programs and Activities*.

2. Roles and Responsibilities. This directive establishes the following responsibilities and authorities:

2.1. The Assistant Secretary of the Air Force for Energy, Installations, and Environment (SAF/IE) has overall responsibility and oversight of DAF-controlled real property. This authority excludes the acquisition, management, and disposal of industrial facilities property.

2.2. The Assistant Secretary of the Air Force for Acquisitions (SAF/AQ) has responsibility for industrial facilities property in accordance with DoDD 4275.5, *Acquisition and Management of Industrial Resources*, Headquarters of the Air Force Mission Directive 1-10, *Assistant Secretary of the Air Force (Acquisition)*, and AFI 63-101/20-101, *Integrated Life Cycle Management*.

2.3. Deputy Assistant Secretary of the Air Force, Installations (SAF/IEI), on behalf of SAF/IE, will:

2.3.1. Provide short- and long-term strategic planning, policy, oversight and interagency coordination and engagement for DAF installations to promote installation sustainability, security and operability. This includes responsibility for all real property transactional activity, including without limitation, acquisition (to include withdrawal of public lands), allowing temporary use, disposal of DAF real property, privatization of family housing or similar initiatives, but excluding real property transactions that are part of a utility privatization transaction.

2.3.2. Provide planning, to include processes and analyses to support installation planning decisions such as decisions on base closures and realignment (BRAC or similar); the DAF Strategic Basing process to include force structure basing changes; joint basing; climate adaptation and resiliency to severe weather and other effects; DAF military housing strategy; Integrated Installation Planning processes and requirements to include Installation Development Planning, Facility Space Planning, the DAF Environmental Impact Analysis Process (EIAP); and mission sustainment, which includes DAF Air Installation Compatible Use Zone program, DAF Noise program, Compatible Use program, the Readiness and Environmental Protection Integration program, and Climate Resilience. SAF/IEI has broad authority for community interface matters and programs, to include, for example, the community partnership program, compatible land use planning and economic adjustment, community planning and impact assistance, multiple military service operations and joint land use, and public/private partnerships for installation support.

2.3.3. Provide joint military-civil airfield usage, changes in legislative jurisdiction of DAF real property, annexation of installations by local governments, and encroachment management to provide efficient and effective operations and services for DAF installations.

2.3.4. Provide interface with outside organizations on matters concerning DAF installations and strategic land use planning matters. SAF/IEI, in cooperation with AF/A4C, has specially arranged lines of authority to and oversight of the Air Force Civil Engineer Center/Installations Directorate (AFCEC/CI), a former field operating agency of AF/A4, that is responsible for supporting, executing, and managing DAF real property transactions, BRAC matters, REPI, housing privatization, installation legislative jurisdiction and annexation matters, community partnership initiatives involving real property transactions and providing corporate level portfolio management and legislative support for Air Force property.

2.4. The Deputy Assistant Secretary of the Air Force for Environment, Safety and Infrastructure (SAF/IEE), on behalf of SAF/IE, will:

2.4.1. Provide short- and long-term planning and direction, policy, oversight and interagency coordination and engagement on all matters pertaining to DAF built and natural infrastructure, environment, energy (other than operational energy), safety, and occupational health.

2.4.2. Provide responsibilities for built infrastructure include, without limitation, the management, inventory, programming and planning/budgeting associated with real property and facilities (including utilities), including any associated maintenance, repair, and operation of and improvements on all facilities, utilities, and land and lifecycle management of facilities and utilities (including utility privatization); real property accountability, cybersecurity, and military construction.

2.4.3. Provide environmental-related responsibilities include providing policy, strategic direction for and oversight of the DAF environmental portfolio, including compliance and restoration programs, and any other environmental matters.

2.4.4. Provide policy, strategic direction, and oversight of DAF installation energy and water resources.

2.4.5. Provide policy, strategic direction, and oversight of DAF safety and occupational health to include noise protection, radioactive materials management, and other safety and occupational health matters. For all of these subject matter areas, SAF/IEE has the primary responsibility for policy, planning, strategic direction, programming, oversight of implementation and operation, and interagency/intergovernmental coordination for all Air Force programs, projects and activities described within this paragraph.

2.4.6. Provide interface with outside organizations on these same subject matter areas. SAF/IEE, in cooperation with AF/A4C, has specially arranged lines of authority to and oversight of the Air Force Office of Energy Assurance (AFOEA). AFOEA functions as if it were located within SAF/IEE, providing enterprise level support to DAF energy resilience initiatives, while identifying and executing major projects in support of installations. SAF/IEE, in cooperation with AF/A4C, has specially arranged lines of authority to and oversight of the AFCEC/CI, a former field operating agency of AF/A4, that is responsible for supporting, executing, and managing DAF utility privatization transactions.

2.5. The AFCEC/CI, in support of, and under the direct oversight of, SAF/IE, SAF/IEI, and SAF/IEE, establishes, manages, oversees, and executes processes and ensures implementation of DAF policy for acquiring, managing and disposing of DAF controlled real property, including BRAC related cleanup and property disposal. AFCEC/CI:

2.5.1. Executes acquisitions and dispositions that are not executed through projects for facility construction or demolition;

2.5.2. Serves as the execution agency for DAF accountability policies developed by the Director of Civil Engineers.

2.6. The Director of Civil Engineers (AF/A4C), in coordination with the Space Force (SF) S4, develops DAF policies for the operational management and accountability of DAF-controlled real property. The Director of Civil Engineers, in coordination with SF/S4, develops strategy and policy, performs oversight and advocates for resources for the DAF's physical plant and for facility and infrastructure requirements essential to the accomplishment of DAF missions and enterprise priorities. Further, the Director, in coordination with SF/S4, provides strategy, policy, and guidance for, and performs oversight of, the audit readiness of the Real Property program.

3. Specific DAF responsibilities, procedures, and guidelines: Are published in AFI 32-9001, AFI 32-9002, AFI 32-9003, AFI 32-9004, and AFI 32-9005, which are the implementing publications to this policy directive. Address requests for waivers to the respective OPR of the AFI in question.

JOHN P. ROTH
Acting Secretary of the Air Force

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

Executive Order 13327, *Federal Real Property Asset Management*, 5 February 2004

Comprehensive Environmental Response Compensation Liability Act, 2 April 1980

Resource Conservation and Recovery Act, 21 October 1976

DoDD 4165.06, *Real Property*, 13 October 2004

DoDI 4165.14, *Real Property Inventory and Forecasting,* 17 January 2014

DoDI 4715.07, *Defense Environmental Restoration Program,* 21 May 2013

DoDI 4165.65, *Shelter for the Homeless Program*, 6 February 2013

DoDI 4165.70, *Real Property Management*, 6 April 2005

DoDI 4165.71, *Real Property Acquisition*, 6 January 2005

DoDI 4165.72, *Real Property Disposal*, 21 December 2007

DoDI 5030.53, *Reimbursement for General Services Administration (GSA) Space, Services and Facilities; and Department of Homeland Security (DHS), Washington Headquarters Services (WHS), and Pentagon Force Protection Agency (PFPA) Services*, 16 October 2012

DoDI 4165.14, *Real Property Inventory (RPI) and Forecasting*, 17 January 2014

DoDI 5305.5, *Space Management Procedures for the National Capital Region (NCR),* 4 November 2015

DoDM 4715.20, *Defense Environmental Restoration Program Management*, 9 March 2012

HAF MD 1-10, *Assistant Secretary of the Air Force (Acquisition)*, 2 September 2016

AFI 32-9010, *Management and Reporting of Air Force Space and Building Services in OSD Assigned Facilities and in the Washington DC Area*, 5 June 2019

AFI 33-332, *Records Management and Information Governance Program*, 23 March 2020

AFI 63-101/20-101, *Integrated Life Cycle Management*, 30 June 2020

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

AF—Air Force

AFI—Air Force Instruction

AFCEC—Air Force Civil Engineer Center

AFOEA—Air Force Office of Energy Assurance

DAF—Department of the Air Force

DAFPD—Department of the Air Force Policy Directive

DHS—Department of Homeland Security

DoD—Department of Defense

DoDD—Department of Defense Directive

DoDI—Department of Defense Instruction

EO—Executive Order

GSA—General Services Administration

OPR—Office of Primary Responsibility

PFPA—Pentagon Force Protection Agency

SAF—Secretary of the Air Force

WHS—Washington Headquarters Services

Terms

Acquisition—Obtain an interest in real property.

Air Installation Compatible Use Zone—A program to achieve compatibility between air installations and neighboring communities by encouraging land use which is compatible with aircraft operations.

Appurtenance—Legal term denoting the attachment of a right or property to a more worthy principal. Appurtenance occurs when the attachment becomes part of the property.

Beddown—The execution of a Secretary of the Air Force approved basing action establishing a unit, mission, activity, or manpower on real property for longer than one year. This applies to activities of all military branches, other DoD, non-DoD federal, state and local governmental, and/or private agencies requesting the use of DAF real property.

Easement—Right to use the land of another for specific purpose. Usually, owners of the land continue in possession and can use it so long as such use does not interfere with the purpose for which easement was granted. An easement may be acquired for a specific term or in perpetuity. An easement differs from a license in that a license is personal, nonassignable, revocable at will and does not convey a real property interest. An easement can be assignable, for a term of years or perpetual, and does convey a real property interest.

Explosive Safety Clear Zone—The area surrounding a potential explosion site which is determined by the required inhabited building separation.

Federal Real Property Council—The interagency council established by Executive Order 13327, “Federal Real Property Asset Management”.

Fee Ownership—Title to real property belonging to a person or the Government for which full and unconditional ownership exists. Such ownership does not necessarily include mineral rights.

Heritage Assets—Items of historical, natural, cultural, educational, or artistic significance (e.g., aesthetic), or items with significant architectural characteristics.

Interest—Something in which a right, claim, or share is held.

Land—Vacant, unimproved ground.

Lease—Conveyance of exclusive possessory interest in real property for a specified term in return for payment of rent or other consideration to the owner.

License—Privilege to use or pass over a licenser's real property for a specific purpose (such as right-of-entry for survey and exploration, construction, or tree topping). Licenses issued to other Federal agencies are called "permits."

Non-Fee Real Property Interest—Title of real property does not belong to the Government; therefore, the Government does not have unconditional ownership.

Outgrants—Documents such as leases, licenses, easements, and joint-use agreements that transfer interest in or control of a real property from the DAF to another Government agency, a non-Federal entity, or a private party.

Permit—An authorization to use property under the jurisdiction of one Government agency by another federal agency for a definite period.

Real Property—Includes lands, buildings, structures, utilities systems, improvements, and appurtenances thereto. It includes equipment attached to and made part of buildings and structures (such as heating systems) but not movable equipment (such as plant equipment). DAF Real Property is any right, title, or interest in land, buildings, fixed improvements, utilities, and other permanent additions to land.

Real Property Asset Management—DAF real property asset management is the process of accurately accounting for, maintaining and managing real property in the most efficient and economical manner in accordance with Federal Real Property Council guidance, while ensuring that the DAF has the real property it needs for sustaining current and projected missions.